



POLICE DEPARTMENT

CHAN

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

FINAL

Police Officer Manuel Mateo :

ORDER

Tax Registry No. 928723 :

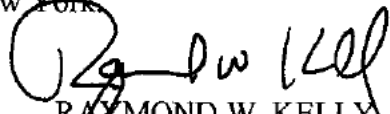
OF

Brooklyn Court Section :

DISMISSAL
-----X

Police Officer Manuel Mateo, Tax Registry No. 928723, Shield No. 2208, Social Security No. [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 83897/08, as set forth on form P.D. 468-121, dated March 28, 2008, respectively, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Manuel Mateo from the Police Service of the City of New York.


RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE: October 27, 2009

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

-----X
In the Matter of the Charges and Specifications : Case No. 83897/08
- against - :
Police Officer Manuel Mateo :
Tax Registry No. 928723 :
Brooklyn Court Section :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable John Grappone
Deputy Commissioner - Trials

A P P E A R A N C E:

For the Department: Penny Bluford-Garrett, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Michael Martinez, Esq.
111 John Street Suite 640
New York, NY 10038

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

The above-named member of the Department appeared before me on March 4 and May 6, 2009, charged with the following:

1. Said Police Officer Manuel Mateo, assigned to the 109 Precinct, on February 08, 2007, while on-duty, in the confines of Queens County, did improperly solicit a benefit, to wit: said Officer agreed that his action as a public servant would be influenced by refraining from taking lawful police action against an individual, identity known to the Department, in exchange for said individual installing sheet rock at said Officer's home. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
N.Y.S. PENAL LAW SECTION 200.10 – BRIBE RECEIVING IN THE THIRD DEGREE

2. Said Police Officer Manuel Mateo, assigned to the 109 Precinct, on or about February 08, 2007, while on-duty, in the confines of Queens County, did knowingly refrain from performing a duty which is imposed upon him by law or clearly inherent in the nature of his office, to wit, said Officer did improperly solicit a benefit from an individual identity known to the Department, in exchange for not effecting the arrest of said person. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
N.Y.S. PENAL LAW SECTION 195.00(2) – OFFICIAL MISCONDUCT

3. Said Police Officer Manuel Mateo, assigned to the 109 Precinct, on or about February 08, 2007, while on-duty, in the confines of Queens County, did fail and neglect to render police services in said Officer's assigned area, to wit: said Officer having probable cause to effect the arrest of an individual, identity known to the Department, failed to do so. *(As amended)*

P.G. 202-21, Page 1, Paragraph 8 – DUTIES AND RESPONSIBILITIES

4. Said Police Officer Manuel Mateo, assigned to the 109 Precinct, on or about February 15, 2007, while off-duty, in the confines of Queens County did wrongfully use a Department computer to make an inquiry unrelated to the official business of the Police Department of the City of New York.

P.G. 219-14, Page 1, Paragraph 2 – PROHIBITED CONDUCT

5. Said Police Officer Manuel Mateo, assigned to the 109 Precinct, on or about February 8, 2007, while on-duty, did wrongfully fail and neglect to maintain his activity log as required.

P.G. 212-08, Pages 1-2 – ACTIVITY LOGS, COMMAND OPERATIONS

The Department was represented by Penny Bluford-Garrett, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found guilty of Specification Nos. 1, 4, and 5. He is found Not Guilty of Specification Nos. 2 and 3.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Francisco Paez, Cesar Riquelme, Detective Alberto Arce, and Lieutenant Christopher Belmonte as witnesses.

Francisco Paez¹

Paez is from Paraguay but currently resides in Elmhurst, Queens. He is a self-employed construction worker who deals in sheet rocking. He gets work through referrals, and he has had occasion to work with a roofing contractor named Cesar Riquelme. He stated that at approximately 11:30 a.m. on February 8, 2007, he and Riquelme were leaving a Home Depot store in Queens. He was driving and Riquelme was in the passenger's seat. When he made a left turn from College Point Boulevard onto Roosevelt Avenue, he was stopped by a police officer (subsequently identified as the Respondent). Paez gave the Respondent his license, and the Respondent brought the

¹ Paez's testimony was translated from Spanish by Paula Pizzi, a certified interpreter.

license back to his Department vehicle. When the Respondent returned the license to Paez, he told Paez that he could be arrested because the license was not good. Paez testified that he did not know whether or not his license was actually suspended, but the Respondent made him believe that that was the case. The Respondent proceeded to ask Paez what line of work he did. According to Paez, when he told the Respondent what he did for work, the Respondent replied that he had a job for him at his home. The Respondent then gave Paez his telephone number and address. Paez testified that he never told the Respondent that he was looking for work

Two or three days after the car stop, Paez went to the Respondent's house. The Respondent has a [REDACTED] house that was being remodeled at the time. Two workers were at the house. The Respondent brought Paez upstairs to the second floor, where the ceiling needed to be sheet rocked. The job, according to Paez, would have required the installation of 20 to 30 pieces of sheetrock, which would have taken two days to complete. He testified that he never spoke to the Respondent about a price and did not know if he would get paid for his work. When Paez returned to the house on the following day to accept the job, he was told that he was no longer needed. Paez reported the Respondent's conduct to the Department's Detective Alberto Arce. He stated that "I called Detective Arce because I felt like this was not appropriate. In my country it is custom to do work for the authority's and then they make things a little easier for us....I told Detective Arce that an officer called Mateo stopped me and he wanted to arrest me but didn't because he offered me a job at his home and if that was correct to do or appropriate to do like in my country. That's what I told Arce." He stated that he did not do the job "because after I spoke to Detective Arce Officer Mateo for some reason maybe someone told him something had a gentlemen tell me that he no longer needed the job."

On cross-examination, Paez testified that when he was pulled over he might have given the Respondent a card or an expired license instead of a current license because he was afraid that his current license was not good. He had several outstanding tickets at the time, but he did not know for certain if his license was suspended. He had been stopped by the Respondent prior to February 8, 2007. On those previous stops, the Respondent gave him tickets and never asked him anything about doing work in his house. After Paez reported the Respondent's conduct to the Department, investigators from the Internal Affairs Bureau (IAB) paid his outstanding tickets, the amount of which totaled \$540.00. They also signed him up as a confidential informant. According to Paez, IAB did not give him an extra \$50.00 for his assistance.

Even though Paez has lived in [REDACTED] the vehicle that he was driving had [REDACTED] plates. He explained that it had [REDACTED] plates because he purchased it from a dealer in [REDACTED]. In addition, he has a [REDACTED] who lives in [REDACTED] and he visits there on a weekly basis. According to Paez, he does not have [REDACTED] license plates for the purpose of obtaining a lower insurance rate. Paez stated that he did not have construction materials in his vehicle at the time of the car stop. Business was slow during that period, and he worked only one to three days a week. He thinks his license was suspended because he was unable to pay for tickets that he had been issued.

On redirect examination, Paez testified that he does not hang out at Home Depot looking for work.

Cesar Riquelme²

Riquelme is from Paraguay but has lived in [REDACTED] for 24 years. He is employed

² Riquelme's testimony was also translated in part by Pizzi.

as a construction worker and has received over 600 hours of professional training. He has been friends with Paez for approximately 20 years, and the two men work together. Riquelme testified that they primarily get jobs through references, and he never looked for work at the Home Depot. He stated that on February 8, 2007, he and Paez were stopped by the Respondent when they left the Home Depot. Riquelme was sitting in the passenger's seat and was not wearing his seat belt. The Respondent took Riquelme's license back to the Department vehicle. The Respondent also asked Paez for his license, but Paez did not have a license on him at the time. When the Respondent returned, he gave Riquelme a summons for not wearing a seatbelt. [Department's Exhibit (DX) 1 is a copy of the summons that the Respondent issued to Riquelme for not wearing a seat belt. It was prepared at 11:20 a.m. on February 8, 2007.] The Respondent told Paez that he could be arrested for not having a license and then asked Paez and Riquelme what kind of work they do. When they told the Respondent that they worked in construction, the Respondent told them that he had a job for them. According to Riquelme, the Respondent told them that they could do the job in exchange for the favor of not arresting Paez. Riquelme gave the Respondent his business card, and the Respondent gave Riquelme his cell phone number. Riquelme later called the Respondent for his address. Riquelme testified that at no point during the stop did he get out of the car or ask the Respondent not to give him a summons.

Two days after the car stop, Riquelme went to the Respondent's house. Riquelme went without Paez because Paez was working that day. The Respondent brought Riquelme upstairs, where the ceiling needed to be installed. Riquelme stated that the installation would have taken three or four days. Riquelme and the Respondent did not discuss payment for the job. Two days later, Riquelme returned to the Respondent's

house with Paez. Riquelme never heard the Respondent offer Paez payment for the job. Riquelme later left a telephone message for the Respondent to tell him that he was not interested in accepting the job.

On cross-examination, Riquelme testified that he believed at the time of the incident that Paez had a valid license. He reiterated that the Respondent gave him his telephone number. The Respondent did not give him his address during the car stop, and he did not recall the Respondent giving Paez an address either. At no point during the car stop did Riquelme ask the Respondent to do him a favor and not issue a summons for no seat belt. He stated that he goes to Home Depot at least twice a week, and he never sees people hanging around the store looking for work. On the day of the car stop, he was at Home Depot to purchase materials. He does not recall how much he purchased. When he went to the Respondent's house he saw at least one other worker there. Riquelme paid for the summons that he received from the Respondent, and nobody in the Department has given him money with respect to this case.

Detective Alberto Arce

Arce, a 17-year member of the Department currently assigned to Narcotics [REDACTED] is a native of Paraguay. He has known Paez for six or seven years. He explained that while he is not close with Paez, most immigrants from Paraguay know each other and he considers Paez a friend. On February 13, 2007, Paez called Arce to tell him about the incident with the Respondent. Paez told Arce that the Respondent told him (Paez) that he would not be arrested in exchange for doing construction work in his (the Respondent's) home. Paez explained to Arce that he wanted to report the incident because he was afraid of retaliation by the Respondent. Arce reported Paez's allegation

to IAB.

On cross-examination, Arce testified that he does not know the Respondent. Arce and Paez have never been to each other's homes. They have not spoken to each other about this case in over two years. After the telephone call from Paez, Arce met Paez and Riquelme in person to discuss the situation. Riquelme told Arce that the Respondent wanted them to do the construction work for free. IAB investigators interviewed Arce, Paez, and Riquelme together in the same room.

Lieutenant Christopher Belmonte

Belmonte, a 16-year member of the Department, is currently assigned to the Manhattan Traffic Task Force. In 2007, while working in IAB, he was assigned to investigate the allegation of misconduct made by Paez against the Respondent. On February 13, 2007, Belmonte spoke with Paez, Riquelme, and Arce together in the same room. Some of the conversation was recorded, but not all of it. During the unrecorded portion of the conversation, Paez told Belmonte that during the course of the car stop, the Respondent brought him back to the Department vehicle to show him on the computer that his license was suspended. [DX 2 is a computer record, which indicates that the Respondent ran Paez's name on his vehicle computer at 11:18 a.m. on February 8, 2007. Four minutes later, the computer gave the Respondent its results. It is not indicated anywhere on the results that Paez's license was suspended. DX 3 is a report that was conducted by Belmonte on February 13, 2007, indicating that Paez's license had been suspended since August 16, 2005 for failing to pay fines.]

As part of his investigation, Belmonte subpoenaed Paez and Riquelme's telephone records. Belmonte testified that both Paez and Riquelme made a substantial number of

telephone calls to the Respondent. [DX 4 is a certified copy of Riquelme's cell phone records. The records indicate that the Respondent called Riquelme on February 9, 2007. On February 10, 2007, the Respondent called Riquelme three times, and Riquelme called the Respondent twice. On February 12, the Respondent called Riquelme once, and Riquelme called the Respondent twice.]

On February 15, 2007, Belmonte had Paez and an undercover investigator visit the Respondent's house as part of a targeted integrity test. The Respondent was not at home, and a construction worker answered the door. Belmonte explained that the construction worker called the Respondent and gave the Respondent the license plate number of the vehicle that Paez and the investigator had driven to the location. The Respondent then ran on a Department computer the license plate number, a plate that had been assigned to IAB. The Respondent then instructed the construction worker to tell Paez that he was no longer needed to perform construction work in the house. [DX 5 is a copy of the computer inquiry conducted by the Respondent on that day.]

Belmonte testified that the Respondent's house is approximately two miles from the Home Depot store where Paez and Riquelme shopped. IAB paid for Paez's outstanding summonses.

On cross-examination, Belmonte testified that separating interview subjects prevents them from influencing each others' statements. When Belmonte interviewed Riquelme and Paez on February 13, 2007, they told him that they had arranged with the Respondent to start work on his house on February 15. Thus, the plan for the integrity test on February 15 was for Paez and the undercover officer to report to the Respondent's house and start the construction project. When they arrived at the house, though, the Respondent was at work performing his regularly scheduled tour. Belmonte stated that

even though the Respondent was not present, it would have been a failed integrity test had Paez started the job. He explained that this is because Paez would have been performing the work based on the agreement made with the Respondent. As it turned out, Paez and the undercover did not start any construction work in the Respondent's house. The Assistant District Attorney in charge of corruption in [REDACTED] opted not to prosecute the Respondent, and the Respondent was never arrested for his alleged misconduct.

Belmonte testified that the Department did not pay for Paez's outstanding summonses as part of an agreement that Paez would work for IAB. He went on to testify, however, that the Department did pay for the summonses and also gave Paez \$50.00 for his cooperation in the investigation against the Respondent. As part of the investigation, Belmonte interviewed people who had been arrested by the Respondent. None of these people claimed that the Respondent offered them deals to get out of being arrested. In July 2007 the Respondent was the subject of a second targeted integrity test, which involved an undercover officer who looked like a worker getting stopped by the Respondent for speeding and asking the Respondent if there was anything he could do to get out of a ticket. The undercover officer noted that the Respondent remained courteous and professional throughout the test. Belmonte did not know that Paez had previously been issued summonses by the Respondent. Similarly, Belmonte did not know exactly what information the computer gave the Respondent when the Respondent ran Paez's name on February 8, 2007.

The Respondent's Case

The Respondent called Alberto Landi as a witness and testified in his own behalf.

Alberto Landi³

Landi is currently employed as a construction worker in [REDACTED]. He is friendly with the Respondent and has done work in the Respondent's house. When the Respondent added another floor to his house, there were many workers involved in the project. Sometimes people who did not have appointments would just stop by the house looking for work. Some of them would leave fliers or business cards. Landi was not authorized to hire anybody for the project, but he would pass their contact information on to the Respondent. The Respondent would tell Landi beforehand who should be allowed into the house. The project lasted approximately a year.

Landi testified that he was working in the house in late January 2007, when two people (previously identified as Paez and Riquelme) came around asking for work. Landi, who had never seen the two men before, gave them the Respondent's telephone number. The next week, Paez and Riquelme returned and asked if the Respondent was present at the location. The Respondent was not there. Landi testified that on February 15, 2007, Paez returned to the house for a third time. This time, he was with someone Landi did not recognize (previously identified as the undercover investigator). According to Landi, the two men pushed their way passed him into the house and proceeded to go upstairs. The two men told Landi that they were there to work, but Landi was suspicious because the Respondent had not told him anything about hiring new workers. Landi's co-worker (subsequently identified as Manuel) called the Respondent, and the Respondent instructed him to send the two new workers away. The Respondent also told Manuel to write down the license plate of the car that the two men were driving. Landi later heard Manuel give the Respondent the license plate number over the telephone.

³ Landi's testimony was translated from Spanish by William Denis, a certified interpreter.

On cross-examination, Landi testified that the Respondent first approached him about doing work in his house as he was throwing out trash in the area of [REDACTED]. [REDACTED] The Respondent paid him in cash for the work that he did. Paez and Riquelme drove to the Respondent's house in a pickup truck with [REDACTED] plates. Landi worked in the house everyday in February 2007. Landi stated that Riquelme never entered the house.

Respondent Police Officer Manuel Mateo

The Respondent, an eight-year member of the Department, is currently assigned to the [REDACTED] Court Section. He is currently on modified duty status as a result of the allegations in this case. Before being modified, he worked in the 109 Precinct, where he was assigned to safety enforcement, issuing 15 summonses a day for six-and-a-half years. In total, he has issued more than 18,000 summonses for moving violations. He has testified in court thousands of times for summonses he has written. As far as he knows, there has never been an allegation of misconduct made against him concerning his testimony. While assigned to the precinct, he primarily worked in the [REDACTED] [REDACTED] where many industrial and construction workers drive their trucks. He explained that there are two Home Depots and many other construction supply stores in the area, and he was assigned there because there are regularly traffic accidents involving hazardous materials. According to the Respondent, 75 percent of the car stops that he conducted involved construction workers. In addition to writing summonses, the Respondent has participated in more than 300 arrests and has personally been the arresting officer for approximately 175 of them. He has never before been the subject of Department charges or had a substantiated CCRB case against him.

In 2007, the Respondent was renovating a house that he had purchased in [REDACTED] which is located in the precinct adjacent to the 109 Precinct. He did a lot of the work on the house himself, and he hired some other workers that had been referred to him by friends. The Respondent had to take a loan out on his mother's house to help pay for the project. When the Respondent could not be there, Landi and a worker named Manuel were the primary workers at the house. During the course of the project, though, the Respondent hired many different workers. Because it was obvious from the street that the house was under construction, strangers would sometimes stop by looking for employment opportunity. If somebody stopped by while the Respondent was not there, Landi would take a message for him. Landi would give the Respondent the telephone numbers of potential workers, and Landi had the authority to give out the Respondent's number in return. After the Respondent arrived at the house, he would make many house-related telephone calls each day. [The parties stipulated that in February 2007 the Respondent on average made 75 telephone calls a day.] When the Respondent decided to hire somebody, he would let Landi and Manuel know about it. The Respondent counted on Landi to let into the house only those people who were supposed to be there.

[Respondent's Exhibits A and B are photographs of the house.]

While at work on [REDACTED] on February 8, 2007, the Respondent pulled over Paez's vehicle because Riquelme was not wearing a seat belt. The Respondent testified that he had never before seen either Paez or Riquelme. When Riquelme stepped out of the car, the Respondent asked for his license and ordered him to get back inside the vehicle. The Respondent then walked up to Paez's window and asked him, too, for a license. Paez told the Respondent that he did not have his license on him, so the Respondent wrote down Paez's name and date of birth on a piece of paper and

went back to his car, where he ran Paez's name on a Department computer. While he waited for the results on Paez, the Respondent prepared a summons for Riquelme. When the summons for Riquelme was complete, the computer had still not yet produced results on Paez. The Respondent decided not to wait for the computer results since he had not seen Paez do anything wrong, and he did not want to keep Paez waiting any longer than necessary. The Respondent walked back to Paez's vehicle and gave the summons to Riquelme. According to the Respondent, Riquelme begged him not to give him the summons because he did not have the money to pay it. The Respondent then warned Paez that he should carry his license with him in the future because without a license he could be taken into custody for identification purposes. The Respondent stated that it was only after Paez drove away that the computer results came in, showing that Paez's license was suspended. The Respondent stated that at no point during the car stop did he give Paez or Riquelme his telephone number or address. He further stated that at no point did he ask them what kind of work they did or tell them to come to house for a construction job. On that day, the Respondent wrote 17 summonses.

The Respondent testified that two or three days later he was at the house when Riquelme knocked on the door. A vehicle that resembled the one driven by Paez was parked on the block, and the Respondent assumed that Paez was waiting in the car. The Respondent stated that the location of the February 8, 2007 car stop was a five-minute drive from the house, and it was not unusual for him to see people he had stopped since he lived so near to where he worked. According to the Respondent, Riquelme told him again that he did not have enough money to pay the summons. The Respondent explained to Riquelme that a written summons cannot be taken back. As the Respondent walked Riquelme toward the car, Riquelme informed him that he was a construction

worker and asked if there was any work available in the house. The Respondent told Riquelme that he did not need any new workers. The Respondent testified that he was made uncomfortable by the fact that Riquelme knew where he lived and came to his house. When asked how Riquelme knew where to find him, the Respondent testified, "[Riquelme] claims he saw me there before or he had come here before at a time that I wasn't there."

Upon review of the records, the Respondent was surprised to see that a call had been made from his phone to Riquelme on February 9, 2007. When asked to explain that call, the Respondent testified that Landi was regularly giving him the names and numbers of people who had stopped by the house, and he (the Respondent) would call these people when he had free time. While at work, the Respondent would use his meal break to catch up on telephone calls that he needed to make. The call to Riquelme on February 9, 2007 took place while the Respondent was on meal. On that day, the Respondent made approximately 12 telephone calls during his meal break. The telephone records indicate that the Respondent checked his voice mail prior to calling Riquelme's number. The Respondent stated that when he proceeded to call Riquelme's number he did not know that he was speaking to someone he had given a summons. According to the Respondent, had he known that he was speaking to someone to whom he had given a summons, he would have ended the telephone call right away.

The Respondent was at work on February 15, 2007 when he received a telephone call from Manuel, informing him that Paez and another man were at the house. The Respondent told Manuel that Paez was not scheduled to do work in the house and should be asked to leave. After the initial phone call, the Respondent called Manuel back and asked him to see what truck Paez and the other man were driving. The Respondent

explained that he wanted the license plate number because he was concerned by the fact that two men who did not have tools and had not been hired to do work would just enter the house like that. The Respondent, who was in his Department vehicle at the time that he received the information from Manuel, ran the plate number on his car computer. He stated that he runs a plate number on his car computer for almost every car stop he makes. According to the Respondent, he did not realize that the February 15, 2007 incident was an integrity test until his Official Department Interview in December 2007. Similarly, it was at that interview that he learned that there had been allegations of misconduct made against him and he was under investigation. The Respondent was on full duty status until he was served with the charges and specifications for this case.⁴ The Respondent testified that he never told Paez or Riquelme to work on his house instead of being arrested. He further testified that he has neither asked anybody that he pulled over to do work on his house nor tried to get people to do work in the house for free.

On cross-examination, the Respondent testified that [REDACTED] and the [REDACTED] are located in between his house and the Home Depot. He stated that if Paez came to his house before February 15, 2007, he was unaware of it. In a February 12, 2007 telephone conversation, the Respondent's brother informed the Respondent that a man named Francisco had stopped by the house looking for work. The Respondent did not know at the time if his brother was referring to Francisco Paez. He conceded that when he ran the license plate number on February 15, 2007, he was doing it for personal reasons, not for a Departmental purpose. Upon review of computer records from February 8, 2007, the Respondent noted that he entered Paez's name in the computer at 11:18 a.m. and received the results on the search at 11:22 a.m. He further

⁴ The Respondent was served with his charges on April 15, 2008.

noted that it indicated nowhere in the 11:22 a.m. results that Paez's license was suspended. He explained that when he entered the information in the computer at 11:18 a.m., he did not type in Paez's date of birth and middle initial. Thus, after he received the results at 11:22 a.m., he ran another search on Paez, this time using more information. He reiterated that by the time the results for the search came back, Paez had already driven away.

The Respondent did not record the February 8, 2007 car stop in his Activity Log. When asked if he was required to record car stops in his Activity Log, the Respondent testified, "You are supposed to put all kinds of activities in your Activity Log. Since I do a large amount of summons at the time we aren't required to write all summonses as far as all the information regarding car stops into a notebook. It would be endless writing."

The Respondent testified that the results for his second computer inquiry on Paez provided the status of Paez's license and his address. At that point, he had probable cause to arrest Paez for driving with a suspended license, but he did not make any attempt to locate Paez.

The Respondent testified that he did not exchange telephone numbers with Riquelme during the car stop. When asked why, then, telephone records indicate that he placed a call to Riquelme the day after the stop, the Respondent stated that the February 9, 2007 call to Riquelme might have been just one of the several house-related messages he was responding to that day. As for the February 10 and February 12 telephone calls, the Respondent stated that he and Riquelme probably kept missing each other's calls and calling each other back. He did not recall ever having a telephone conversation with Riquelme, and he stated that the calls placed between the two of them must have consisted of leaving voice mail. He did not know at the time that he was calling the same

person he had given a summons.

The Respondent occasionally hired day laborers to work on his house. When Riquelme came to the house, the Respondent was concerned about how Riquelme got his address. The Respondent did not ask Riquelme about it though. He stated that because he lived so close to the precinct and the Home Depot, it was not uncommon for him to see people he had pulled over in his neighborhood.

FINDINGS AND ANALYSIS

Specification No. 1

The Respondent stands charged with improperly soliciting a benefit, in that he agreed to refrain from taking lawful police action against Paez in exchange for Paez installing sheet rock at his home.

On February 8, 2007, the Respondent stopped a vehicle driven by Paez because he saw the passenger, Riquelme, not wearing a seat belt. After he issued Riquelme a summons for not wearing the seat belt he asked Paez for his driver's license. Paez at first testified that he did give the Respondent his license, but he then went on to state that he may have given the Respondent a card or an expired license instead. Riquelme, who was sitting in the passenger seat, testified that Paez did not have driver's license on him at the time.

According to Paez and Riquelme, the Respondent at one point told Paez that he could be arrested because his license was "not good" and then asked him what kind of work he did. Paez stated that when he informed the Respondent that he was a construction worker, the Respondent replied that that he had a job for him at his home and gave him his telephone number and address. Riquelme also stated that the

Respondent told them they could do a job for him in exchange for not arresting Paez. Riquelme stated that he then gave the Respondent his business card and the Respondent gave Riquelme his cell phone number. Riquelme later called the Respondent for his address. In support of Riquelme's testimony is the fact that telephone records indicate that there was telephone contact between Riquelme and the Respondent on February 9, 10 and 12, 2007 (DX 4).

Two days after the car stop Riquelme went to the Respondent's house without Paez because Paez was working and the Respondent brought him upstairs and showed him where the ceiling needed to be installed. According to Riquelme, the installation would have required three to four days of labor. They did not discuss payment for the work.

Paez also went to the Respondent's house and was shown where the second floor ceiling needed to be installed. He estimated that the job would require 20 to 30 pieces of sheetrock which he estimated would have taken two days to complete. According to Paez, the Respondent did not mention anything about payment for the work, but led him to believe that he could be arrested for not having a driver's license. On February 13, 2007, Paez reported the Respondent's actions to his friend, Arce, a member of the Department. He told Arce about being stopped by the Respondent and that he wanted to arrest him "but didn't because he offered me a job at his home...."

The Respondent, in contrast, testified that Paez did not have a license, so he simply ran Paez's name on his vehicle computer. The computer check initially did not indicate that Paez's license had been suspended (DX 2). The Respondent stated that it was only after Paez left the scene that a response came back indicating that his license was in fact suspended.

The Respondent explained that the reasons he let Paez go was because the

computer results did not show that Paez's license was suspended; that he had not seen Paez do anything wrong, and he did not want to keep him waiting any longer than necessary. According to the Respondent, he at no point gave his telephone number or address to Paez or Riquelme and ask them what kind of work they did, or tell them to come to his house for a construction job. The Respondent stated that two or three days after the stop, Riquelme came to his house to tell him that he did not have the money to pay the summons that the Respondent had issued to him during the car stop. He claimed that at that point Riquelme also asked him if there was any work available in the house. The Respondent told Riquelme that nothing could be done about the summons and that he was not hiring any new workers. The Respondent believed that Paez was waiting in the car during his exchange with Riquelme. According to the Respondent, he was unaware of Paez ever entering his house before February 15, 2007, which is when IAB sent Paez to the house as part of a targeted integrity test.

Because the computer inquiry conducted by the Respondent did not have a license number on it, it seems that (as the Respondent testified) Paez did not have a license on him at the time of the stop. As for the rest of the Respondent's testimony, however, this Court finds his version of the incident to be inconsistent with the evidence presented at trial. After running Paez's name on the computer and getting no information on a license, the Respondent should have issued Paez a summons for driving without a license and/or brought him into the command for further identification purposes. The Respondent did neither of these things. The record shows that Paez and Riquelme went to the Respondent's house two or three days after the car stop. (Riquelme testified that he actually went to the Respondent's house twice, once alone and once with Paez.) The Respondent attempted to explain this fact away as mere coincidence. He explained that

he stopped Paez and Riquelme only two miles from his house, and since he lives in the adjacent precinct it is not uncommon for him to run into people he has stopped while he is off duty. Moreover, according to the Respondent, construction workers (like Paez and Riquelme) sometimes just stopped by his house looking for work since it was obvious from the street that the house was under construction.

In addition to Paez or Riquelme's appearance at the house, the telephone records indicate that the Respondent called Riquelme the day after the stop and that eight more calls were made between them over the course of the next four days. The Respondent again attempted to explain this fact away as coincidence. He suggested in his testimony that at some point prior to the stop, Riquelme may have come to the house looking for work. He explained that if he was not at home at the time, one of the workers employed at the house would have exchanged contact information with Riquelme. Later, when he had free time, the Respondent would have given Riquelme a call about the house. He made many house-related calls each day, and he made on average 75 calls a day during February 2007. He claimed that he did not know when he called Riquelme on February 9, 2007, that he was calling someone to whom he had just given a summons.

While this Court understands that coincidences happen, it finds the Respondent's version of the incident to be far-fetched and self-serving. The concern and considerable doubt this Court has is that without any solicitation on the part of the Respondent, the likelihood of an exchange of telephone calls between Riquelme and the Respondent, a police officer who had just issued him a summons, and a visit by Riquelme and Paez to the Respondent's house looking for work a couple of days later is extremely remote. The timing of these events is simply too suspicious for the Court to accept as mere happenstance or coincidence. Furthermore, if the Respondent did not threaten Paez with

arrest there would have been no apparent motive for Paez to fabricate his allegation against the Respondent. If the Respondent simply let him go after the stop without the threat of arrest then that likely would have been the end of the matter. Or if Paez and Riquelme had coincidentally came upon his house and inquired about work, either before the stop as Landi claimed or any other time after the stop, and they could not agree on a price or no work was to be had then that too would have ended the matter without the need for Paez to go to Detective Arce. The totality of the circumstances supports the fact that the Respondent did make some arrangement with Paez to perform work in lieu of further police action regarding his license.

While there are certainly aspects of the Department's case that the Court finds troubling (such as the payment in excess of \$500 for Paez's tickets and his denial that he was given \$50.00 by IAB, and Belmonte's interviewing of Paez, Riquelme, and Arce all together in the same room at the same time), at the end of the day the timing of the Respondent's in-person and telephone contact with Paez and Riquelme speaks for itself.

Based on the foregoing, this Court finds Paez's and Riquelme's account of the incident to be more convincing than the one offered by the Respondent. Accordingly, the Respondent is found Guilty as charged in this Specification.

Specification Nos. 2 and 3

The Respondent stands charged with neglecting to render police services in his assigned area, in that he failed to effect Paez's arrest even though he had probable cause to do so. He also stands charged with knowingly refraining from performing a duty which is imposed upon him by law or clearly inherent in the nature of his office, in that he improperly solicited a benefit from Paez in exchange for not effecting Paez's arrest.

The Respondent testified that he let Paez go because he did not know at the time of the stop that Paez's license was suspended. Although Paez's license was, in fact, suspended, documentary evidence presented at trial is consistent with the Respondent's claim.

Department records show that the Respondent ran Paez's name on his vehicle computer. Four minutes later, the computer gave the Respondent its results, but it was not indicated anywhere on these results that Paez's license was suspended (DX 2). It's also noteworthy that no subsequent evidence was submitted to this Court that the Respondent knew of the Paez's suspended license while Paez was still at the scene. If the Respondent had no knowledge of Paez's suspended license when Paez was present at the scene then he did not have probable cause to arrest him for simply not having his license with him. Consequently, the Respondent's failure to arrest him cannot be considered a "knowingly refrain from performing a duty which is imposed upon him or clearly inherent in the nature of his office."

The Court notes that this conclusion is not inconsistent with its determination for Specification No. 1. The Court found the Respondent Guilty of Specification No. 1 because it found that the Respondent did not to take police action in return for Paez doing construction work in his home. While the Respondent led Paez to believe that he would arrest him, the police action in question was that he failed to issue Paez a summons for driving without a license and/or bring him to the station house for further identification. And while this Court finds that the Respondent led Paez to believe that he could be arrested, this Court does not find by a preponderance of the credible evidence that the Respondent was aware of any legal ground to actually effectuate a lawful arrest.

Accordingly, the Respondent is found Not Guilty of Specification Nos. 2 and 3.

Specification Nos. 4 and 5

The Respondent stands charged with using a Department computer to make an inquiry unrelated to the official business of the Department. When Paez and an undercover investigator went to the Respondent's house as part of a targeted integrity test, the Respondent ran the license plate number of the car that they were driving. The Respondent, who stated that he did not know at the time that that he was the subject of an integrity test, testified that he ran the plate number because he was concerned by the fact that two men who did not have tools and had not been hired to do work would enter his house claiming to be workers there. The Respondent conceded that he conducted this inquiry for personal reasons, not for a Departmental purpose.

The Respondent also stands charged with neglecting to maintain his Activity Log. The Respondent did not record the February 8, 2007 car stop of Paez in his Activity Log. He explained that because he wrote so many summonses, it would have been endless writing if he actually recorded each of them in his Activity Log. Patrol Guide section 212-08 specifically states that a police officer should record in his Activity Log "Assignments received – Indicate time received, type of assignment, [and] location If summons, enter summons number." The section goes on to state that the officer should also record "Information pertinent to an assignment or observed/suspected violation of law, i.e., action taken, narrative disposition, forms prepared with identifying serial numbers, etc." It is clear from this section that the Respondent was obligated to make Activity Log entries about Paez's car stop and all other car stops that he conducted.

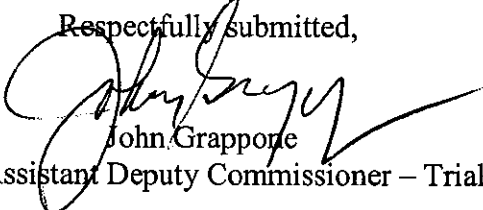
Based on the foregoing, the Respondent is found Guilty of Specification Nos. 4 and 5.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Department on July 2, 2001. Information from his personnel record that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of using a Department computer to make an inquiry unrelated to official Department business and neglecting to maintain his Activity Log. More importantly and more serious is that the Respondent has also been found guilty of improperly soliciting a benefit, in that he agreed to refrain from taking lawful police action against Paez in exchange for Paez installing sheet rock at his home. This act not only violated the Patrol Guide it also violated the Penal Law's bribe receiving in the third degree. Despite the Respondent's ostensibly good performance over his eight-year career as a police officer, his serious misconduct committed while on-duty, leaves this Court no choice but to recommend that he be DISMISSED from the Department.

APPROVED
OCT 27 2009
RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,

John Grappone
Assistant Deputy Commissioner – Trials

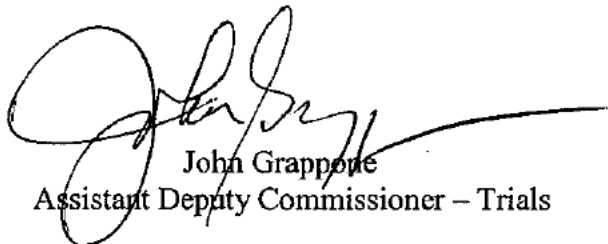
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MANUEL MATEO
TAX REGISTRY NO. 928723
DISCIPLINARY CASE NO. 83897/08

On his last three annual performance evaluations, the Respondent received an overall rating of 4.0 "Highly Competent." [REDACTED]

[REDACTED] He has no prior formal disciplinary record.

For your consideration.


John Grappone
Assistant Deputy Commissioner – Trials